

[26 GEO. 5. & *Royal National Pension* [Ch. xxvi.]
1 EDW. 8.] *Fund for Nurses Act, 1936.*



CHAPTER xxvi.

An Act for the removal of doubts as to the validity of certain policies issued by the Royal National Pension Fund for Nurses to extend the objects of the fund and for other purposes. A.D. 1936.
[21st May 1936.]

WHEREAS the Royal National Pension Fund for Nurses (in this Act referred to as "the Society") was incorporated on the twenty-second day of February one thousand eight hundred and eighty-eight under the Companies Acts 1862 and 1886 as a company limited by guarantee under the name of the National Pension Fund for Nurses but by licence of the Board of Trade pursuant to section 23 of the Companies Act 1867 without the addition of the word "Limited" to its name which was changed by special resolution and with the authority of the Board of Trade on the eleventh day of May one thousand eight hundred and ninety-one to the present name of the Society : 25 & 26 Vict. c. 89. 49 & 50 Vict. c. 23. 30 & 31 Vict. c. 131.

And whereas the objects for which the Society was established are set forth in clause 3 of the memorandum of association as follows (that is to say) :—

" 3. The objects for which the Society is established are as follows :—

(a) To grant purchase sell or assure life annuities and deferred or contingent annuities of every description and also endowments and any other deferred or future payments

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provisions or advances in favour of nurses of all descriptions and of officials of hospitals and other kindred institutions and all other institutions whose objects embrace directly or indirectly the relief or assistance of the sick the injured or the distressed and with and among such nurses and officials as aforesaid to carry on every kind of business which may be legally carried on and transacted by any life assurance annuity endowment and reversionary interest company or society and to carry on the business of insurance against illness permanent or temporary or accident so far as such business may legally be carried on by this Society Provided that no contract for or grant of any policy or annuity of any kind shall be made by the Society except to a person who is shall be or has been a nurse or official as aforesaid and on the life or part of the life of any such person and provided that no contract for or any annuity or any policy of any kind shall be granted by the Society unless such contract or policy contains the following statement (viz.) ' the Royal ' National Pension Fund for Nurses is not a ' society in which the liability of members is ' unlimited and accordingly the holder hereof ' must look solely to the assets of the Society ' to satisfy its obligations hereunder ' ;

(b) To purchase and deal in reversionary interests absolute or contingent and estates for life whether determinable or not in land or any description of real or personal property in England or elsewhere and to acquire or extinguish by purchase or surrender any annuity policy or grant issued by the Society ;

(c) To create or set aside a special fund or special funds including an annuity fund a sickness relief fund institution fund and a bonus fund and to give to any class of policy-holders annuitants or creditors any preferential right over any fund or funds so created and for such or any other purposes

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of the Society to place any portion of the Society's property in the names or within the control of any one or more trustee or trustees; A.D. 1936.

(d) To make ex gratia payments or gifts to the nurses and officials not being members of the Society referred to in subsection (a) of section 3 of this memorandum of association;

(e) At the instigation of the representatives of the nurses' training schools or otherwise to provide and keep a register for trained and certificated nurses wherein may be entered the qualifications and other particulars of all matrons sisters nurses and other persons engaged or desirous of being engaged in hospital or other similar work to make rules institute examinations charge fees provide offices badges books and do all other things which may be found necessary or desirable for the purpose of opening and keeping of any such register;

(f) To promote the grant to the Society of gifts and assistance of all kinds and to secure the co-operation or services of the public in furthering the objects of the Society and for such purposes or purpose to collect arrange and publish all facts or statistics relating as well to the Society as to the nurses and officials referred to in subsection (a) of section 3 of this memorandum of association In case any property taken by the Society shall be taken upon special charitable trusts and not for the general purposes of the Society or for any other reason shall be in the nature of such a charitable endowment as to be subject to the jurisdiction of the Charity Commissioners the Society shall observe all rules and directions of the Charity Commissioners with respect thereto and shall if required by them vest such property in special trustees thereof :"

And whereas the Society from time to time has entered into arrangements with hospitals nursing homes nursing associations and other institutions which have

A.D. 1936. — established pension or superannuation schemes for nurses in their employment or the objects of which include the organisation or management of schemes for the provision of insurance benefits for nurses or members of the staffs of voluntary hospitals or kindred allied or ancillary institutions and with other employers of nurses for the insurance of the lives of or the provision of deferred annuities for nurses and hospital officials and in accordance with such arrangements has issued life and deferred annuity policies to such hospitals nursing homes nursing associations and other institutions and other employers of nurses :

And whereas the Society has accepted sums of money on deposit from hospitals nursing associations and other institutions with which such arrangements as aforesaid have been entered into and from nurses and hospital officials and from persons in the employment of the Society :

And whereas the Society has in certain cases issued annuity policies or reversionary annuity policies upon two lives one being the life of a nurse and the other a relative or friend of the nurse :

And whereas the Society has been advised that the arrangements aforesaid with hospitals nursing homes nursing associations and other institutions and other employers of nurses and the issue of policies to such hospitals nursing homes nursing associations and other institutions and other employers of nurses and the acceptance of money on deposit as aforesaid and the said issue of annuity policies and reversionary annuity policies upon two lives of which both are not the lives of nurses are not or may not be within the objects specified in the memorandum of association of the Society and doubts have thus been cast upon the powers of the Society to enter into arrangements and to issue policies and to accept sums of money on deposit as aforesaid :

And whereas it is expedient that the Society should have power to enter into arrangements and contracts with hospitals nursing homes and other similar institutions and with nursing associations and other employers of nurses and with any other institution by which any pension superannuation or insurance scheme for the

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benefit of nurses or persons employed by hospitals may for the time being be carried on or administered for the insurance of the lives of or the provision of deferred or other annuities for nurses or persons employed by any hospital nursing home or other similar institution or by any nursing association or other employer of nurses or any such other institution as aforesaid and should have power accordingly to issue policies direct to any hospital nursing home or similar institution or to any nursing association or other employer of nurses or to any such other institution as aforesaid : A.D. 1936.

And whereas further it is expedient that the Society should have power to accept money on deposit from any institutions bodies or persons with which the Society has entered into such arrangements as aforesaid and from nurses and from other persons upon whose lives the Society has power to issue policies and from persons in the employment of the Society :

And whereas further it is expedient that the Society should have power to grant a life policy or an annuity policy deferred reversionary contingent or otherwise upon two or more lives one being a life of a nurse or hospital official and the others or other being the lives of relatives or dependants or friends of the nurse or official or the life of a relative dependant or friend :

And whereas it is expedient for the removal of doubts as aforesaid that the arrangements entered into and policies issued as aforesaid and the acceptance aforesaid of sums of money on deposit should be declared to be valid and that the objects and powers of the Society should be enlarged and extended as by this Act provided :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Royal National Pension Fund for Nurses Act 1936. Short title.

A.D. 1936.

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Alteration
of memo-
randum of
association
of Society.

2. Subject to the provisions of this Act clause 3 of the memorandum of association of the Society is hereby rescinded and the following clause substituted therefor :—

“ 3. The objects for which the Society is established are as follows :—

(a) To grant annuities of all kinds including life deferred temporary reversionary and contingent annuities and to grant or effect life assurances of all kinds including deferred temporary endowment reversionary and contingent assurances to issue policies evidencing such annuities and assurances and to carry on every kind of business which may be legally carried on and transacted by a life assurance annuity and reversionary interest company or society and to carry on the business of insurance against illness or incapacity (bodily or mental permanent or temporary) or accident Provided that no annuity or life or other assurance shall be granted or effected except upon or in connection with the life or lives of one or more nurses or hospital officials or the joint lives or the life or lives of the survivor or survivors of persons one at least of whom is a nurse or hospital official or the life of an employee or former employee of the Society not being a member of the Society And provided also that no contract for or grant of any annuity or life or other assurance of any kind shall be entered into or made by the Society and no policy shall be issued by the Society except with or to a nurse or hospital official or a hospital or nursing home or other similar institution or a nursing association or other employer of nurses or with or to an institution by which some pension superannuation or insurance scheme for the benefit of nurses or hospital officials is for the time being carried on or administered or with or to persons jointly one at least of whom is a nurse or hospital official or with or to a person not being a nurse or hospital official

who (as or if the survivor or one of the survivors of two or more persons one at least of whom is a nurse or hospital official) is or may become entitled to some annuity or life or other assurance or with or to an employee or former employee of the Society And provided further that no contract for any annuity and no policy of any kind shall be entered into or granted by the Society unless such contract or policy contains the following statement (viz.) 'the Royal National Pension Fund for Nurses is not a society in which the liability of members is unlimited and accordingly the holder hereof must look solely to the assets of the Society to satisfy its obligations hereunder';

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(b) To purchase and deal in and make advances upon the security of life and reversionary and other limited interests whether absolute or contingent and whether determinable or not in land or in any other kind of property in England or elsewhere and to acquire or extinguish by purchase or surrender any annuity or policy of assurance granted or issued by the Society;

(c) To invest the moneys of the Society not immediately required for its purposes in or upon such investments securities or property as may be thought fit but so that any moneys subject or representing property subject to the jurisdiction of the Charity Commissioners shall only be invested in such securities and with such sanction (if any) as may for the time being be prescribed by law;

(d) To borrow or raise or secure the payment of money required for the purposes of the Society on such terms and on such security as may be thought fit;

(e) To accept money on deposit upon such terms as the Society may think fit from any person or body to whom or which the Society has power to issue a policy;

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(f) To create or set aside a special fund or special funds including an annuity fund a sickness relief fund institution fund and a bonus fund and to give to any class of policy-holders annuitants or creditors any preferential right over any fund or funds so created and from time to time and subject to any subsisting contracts to vary the rights created over any such fund and for such or any other purposes of the Society to place any portion of the Society's property in the names or within the control of any one or more trustee or trustees;

(g) To make ex gratia payments or gifts to nurses and hospital officials not being members of the Society;

(h) To promote the grant to the Society of gifts and assistance of all kinds and to secure the co-operation or services of the public in furthering the objects of the Society and for such purposes or purpose to collect arrange and publish all facts or statistics relating as well to the Society as to nurses and hospital officials and to undertake and execute any lawful trusts which may be conducive to the objects or any of the objects of the Society Provided that in case any property taken by the Society shall be taken upon special charitable trusts and not for the general purposes of the Society or for any other reason shall be in the nature of such a charitable endowment as to be subject to the jurisdiction of the Charity Commissioners the Society shall observe all rules and directions of the Charity Commissioners with respect thereto and shall if required by them vest such property in special trustees thereof;

(i) To establish and support or aid in the establishment and support of any superannuation insurance or other schemes funds trusts and conveniences calculated to benefit employees or former employees of the Society

not being members of the Society or the families dependants or connections of such persons and to grant pensions and superannuation and other allowances and benefits to such employees or former employees families dependants and connections as aforesaid. A.D. 1936.

For the purposes of this clause the expression 'nurse' means and includes any person male or female who is or has been or is about to become a nurse of any kind or a midwife masseur health visitor therapist or operator of Röntgen or other rays or who is or has been or is about to become engaged in any occupation or duties which include directly or indirectly the relief or assistance of the sick the injured or the distressed the expression 'hospital' means and includes any hospital or other institution whose objects include the relief or assistance directly or indirectly of the sick the injured or the distressed and any institution the objects of which include the advancement or benefit of the nursing profession or any branch of that profession or the training or examination of nurses or hospital officials or the issue to nurses or hospital officials of certificates relative to their professional standing or qualification and any institution by which any pension superannuation or insurance scheme for the benefit of nurses or hospital officials is being for the time being carried on or administered and the expression 'hospital official' means and includes any person male or female (other than a nurse) in the employment of a hospital."

3. All arrangements entered into by the Society before the passing of this Act with any hospital nursing home nursing association or other institution which had established a pension or superannuation scheme for nurses in its employment or the objects of which included the organisation or management of schemes for the provision of insurance benefit for nurses or members of the staffs of voluntary hospitals or kindred allied or ancillary institutions or with any other employer of nurses for the Validation of existing policies.

A.D. 1936. — insurance of the lives of or the provision of deferred annuities for nurses or officials employed by any hospital nursing home or similar institution or nursing association or other employer of nurses and all policies issued by the Society before the passing of this Act in accordance with any such arrangement to any hospital nursing home nursing association or other institution or to any other employer of nurses and all policies issued by the Society before the passing of this Act upon two lives of which both were not the lives of nurses shall have and be deemed always to have had the same validity and effect as if the same had been respectively entered into or issued by the Society in pursuance of the powers conferred by virtue of this Act and all sums of money accepted by the Society on deposit before the passing of this Act which could lawfully have been accepted by the Society if deposited after the passing of this Act shall be deemed to have been lawfully accepted by the Society and always to have been and so far as the same continue to be held by the Society at the passing of this Act to be lawfully held by the Society.

As to future alteration of memorandum of association.
19 & 20
Geo. 5. c. 23.

4. Nothing in this Act contained shall prevent the Society from exercising the powers conferred by the Companies Act 1929 for altering the provisions of its memorandum of association as varied by this Act or shall prevent the court from confirming any such alteration.

Pending actions.

5. Save as in this Act expressly provided nothing in this Act contained shall be deemed to render valid or invalid any act done or proceeding pending by or against the Society before or at the passing of this Act.

Copy of Act to be registered.

6.—(1) The Society shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Society shall incur a penalty not exceeding two pounds for every day after the expiration of the said three months during which the default continues and any member of the council of the Society who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

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(2) There shall be paid to the registrar by the A.D. 1936.
Society on such copy being registered the fee of five —
shillings.

7. The costs charges and expenses preliminary Costs of
to and of and incidental to the procuring obtaining and Act.
passing of this Act or otherwise in relation thereto shall
be borne and paid by the Society.

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